

26STCV11894 26STCV11894

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-09-17

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Case Number: 26STCV11894 Hearing Date: September 17, 2026 Dept: 529

JOSE JESUS

LICEA vs ETHLETE VENTURES LLC

motion to strike ANSWER

Date

of Hearing: September 17, 2026 Trial

Date: None

set.

Department: 529 Case

No.: 26STCV11894

Moving Party: Plaintiff

Jose Jesus Licea

Responding Party: No

opposition.

BACKGROUND

On April 13, 2026, Plaintiff Jose Jesus

Licea filed a complaint against Ethlete Ventures LLC dba www.ethlete.com for violation of the Automatic Renewal Law and Related

Claims. Plaintiff alleges they incurred unlawful charges from Defendant related to an automatic renewal or continuous service.

[Tentative] Ruling

Plaintiff Jose Jesus Licea's Motion to
Strike Answer is GRANTED WITH LEAVE TO AMEND.

DISCUSSION

Plaintiff

Jose Jesus Licea moves to strike Defendant Ethlete Ventures LLC's answer filed on April 15, 2026, pursuant to Code of Civil Procedure section 436, on the grounds Defendant filed the answer as a self-represented litigant.

"[U]nder

a long-standing common law rule of procedure, a corporation, unlike a natural person, cannot represent itself before courts of record in propria persona, nor can it represent itself through a corporate officer, director or other employee who is not an attorney. It must be represented by licensed counsel in proceedings before courts of record." (CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1145.) The rationale for this rule is that "a corporation, as an artificial entity created by law, can only act in its affairs through its natural person agents and representatives. If the corporate agent who would likely appear on behalf of the corporation in court proceedings, e.g., an officer or director, is not an attorney, that person would be engaged in the unlicensed practice of law." (Id. at p. 1146.)

For this reason, a corporation cannot file a pleading in propria persona. 22

As Ethlete Ventures LLC's Answer is

filed on its own behalf and because a limited liability company may not represent itself, Plaintiff is correct Defendant's Answer is improper. The court notes "it is more appropriate and just to treat a corporation's [or an LLC's] failure to be represented by an attorney as a defect that may be corrected, on such terms as are just in the sound discretion of the court" and for this reason, the court grants the motion with leave to amend. (CLD Construction, Inc., supra, 120 Cal.App.4th at p. 1149.) "[T]he court retains authority to dismiss an action if an unrepresented corporation does not obtain counsel within reasonable time. (Id. at p. 1150.)

The court gives Defendant 60 days leave to seek representation from licensed counsel, otherwise, the court will enter default against Defendant.

Based on the foregoing, Plaintiff's

Jose Jesus Licea's Motion to Strike Answer is GRANTED.